

Court No. - 39

Case :- WRIT - C No. - 30729 of 2014

Petitioner :- Mukesh Singh Chaturvedi

Respondent :- State Of U.P. Thru' Secy. Power & 2 Others

Counsel for Petitioner :- Sanjay Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

Heard Sri Sanjay Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Baleshwar Chaturvedi for the Respondents No.2 & 3, which is Dakshinanchal Vidyut Vitran Nigam Ltd. and its Officers.

The petitioner has assailed the electricity bill dated 20.05.2014 issued by the Respondent No.3 for consumption of electricity by the petitioner.

Sri Baleshwar Chaturvedi at the outset has raised a preliminary objection to state that the petitioner had got remedy under Clause 6.5 of the Electricity Supply Code, 2005 where the entire records of the electricity connection of the petitioner will be available and can be decided by the competent authority by recording findings of fact therein.

We have considered the submission of learned counsel for the parties and perused the record. The dispute of the petitioner is relating to the amount of the bill sent to him on 20.05.2014. The petitioner has raised various questions including that the electric meter was defective and hence such a bill could not be raised against the petitioner. We find from the record that these are highly disputed questions of fact which require to be addressed by an Authority which has the records of the electric connection of the petitioner available before it. Under such circumstances, we are of the view that the petitioner ought to have availed the remedy under Clause 6.5 of the Electricity Supply Code, 2005.

Under such circumstances, we dispose of this writ petition without interfering in the impugned bill, however by providing that the petitioner, if he so desires, may avail his remedy under Clause 6.5 of the Electricity Supply Code, 2005.

The writ petition is disposed of.

No order is passed as to costs.

Order Date :- 29.5.2014

pks